

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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EUGENIO CORTES & MARGARITA RUIZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
RICHARD HERRERABAYAS (SHIELD # 31760), POLICE
OFFICER JOHN DOE #1, POLICE OFFICERS JOHN
DOES #2-4 (names and numbers of who is unknown at
present), and other unidentified members of the New York
City Police Department,

Defendants.
-----X

SUMMONS

Index #

Basis of Venue:
Place of Incident

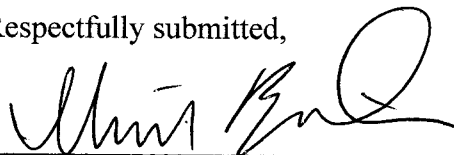
Plaintiffs designate
New York County
as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 24, 2015

Respectfully submitted,



ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiff
65 Broadway (Suites 813 & 814)
New York, New York 10006
(212) 691-3333

CITY OF NEW YORK: CORPORATION COUNSEL
100 Church Street New York, NY 10007

POLICE OFFICER RICHARD HERRERABAYAS (SHIELD# 31760)
13TH Precinct New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

-----X
EUGENIO CORTES & MARGARITA RUIZ,

VERIFIED COMPLAINT

Index #

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
RICHARD HERRERABAYAS (SHIELD # 31760), POLICE
OFFICER JOHN DOE #1, POLICE OFFICERS JOHN
DOES #2-4 (names and numbers of who is unknown at
present), and other unidentified members of the New York
City Police Department,

Defendants.

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Plaintiffs **Eugenio Cortes and Margarita Ruiz**, by their attorney, ILISSA BROWNSTEIN, ESQ., as
and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and malicious prosecution of plaintiff. Defendants additionally used excessive force in violation of Plaintiff's constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Plaintiff Eugenio Cortes is a citizen of the United States and a resident of Bronx, New York.
3. Plaintiff Margarita Ruiz is a citizen of the United States and a resident of Bronx, New York.
4. Police Officer Richard Herrrerabayas (Shield #31760) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. Police Officer Richard Herrrerabayas (Shield #31760) is being sued in his individual capacity and official capacity.

6. Police Officer John Doe #1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John Doe #2-4 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John Doe #2-4 are being sued in his individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiffs in furtherance of their State cause of action filed a timely (with regard to some claims) Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(H) hearing examination of the Plaintiffs on May 12, 2015.

STATEMENT OF FACTS

15. Eugenio Cortes is 44 years old. Approximately 20 years ago, Mr. Cortes worked as a sanitation worker for a private company until he was injured on the job and permanently damaged his back. Mr. Cortes has never been convicted of a crime.
16. Margarita Ruiz is 33 years old. In 2007, she was employed as a court officer in New York City Family Court. Since 2007, Ms. Ruiz was diagnosed with a tumor and has been disabled since then. This was her first arrest.
17. Eugenio Cortes and Margarita Ruiz have been partners for numerous years.
18. On June 29, 2014, at approximately 2am in the morning, at 14th Street & 2nd Avenue, in New York, New York, Mr. Cortes, Ms. Ruiz and their two friends just exited a bar called Coyote Ugly.
19. After walking a few blocks from the bar, they were stopped and approached by 8 officers. The officers claimed that Ms. Ruiz was assaulting Mr. Cortes. Ms. Ruiz explained to the officers that prior to them intervening, Mr. Cortes accidentally stepped on her foot while she was in heels and she screamed in pain. Ms. Ruiz and Mr. Cortes tried to explain to the officers that they were not fighting.
20. Mr. Cortes told the officers that Ms. Ruiz did not assault or hurt him in any way. Mr. Cortes is deaf in his left ear and hard of hearing in his right ear, so he speaks in a louder tone. One of the officers mistook his tone as aggression. He stepped directly in front of Mr. Cortes and spit on his face. Mr. Cortes told the officer that that was disrespectful. The officer told Mr. Cortes that he did not care and spit on his face again. The officer proceeded to grab Mr. Cortes and shoved him into a steel gate.
21. Mr. Cortes has had several back surgeries in the past 14 years and he was afraid of aggravating it. Mr. Cortes had a cane with him and thus it was obvious to the officers that he had a physical disability. To prevent himself from falling, Mr. Cortes grabbed onto the officer's bulletproof vest for leverage. Mr. Cortes's weight on the officer pulled him down causing both of them to fall to the ground.
22. At this point, all of the other officers began beating on Mr. Cortes while he was still on the ground. As one officer was holding Mr. Cortes's legs down, the other officers repeatedly punched and kicked him while another officer continued to knee his back. One officer elbowed his mouth. This beating took place for approximately 20 minutes while Ms. Ruiz was held back by one of the officers.
23. Mr. Cortes was arrested for obstructing governmental administration and resisting arrest. Mr. Cortes did not obstruct an officer nor did he resist his arrest.
24. Mr. Cortes was incarcerated for approximately 3 days.

25. At the precinct, Mr. Cortes suffered 3 seizures while he was in his cell.
26. Mr. Cortes was then taken to Bellevue Hospital where he sought medical attention.
27. Mr. Cortes's bail was set in the amount of \$1000/\$5000. He made bail and was released on July 1, 2014.
28. Mr. Cortes attended 3 court appearances. Mr. Cortes's case was dismissed on March 3, 2015.
29. As a result of his assault, he suffered injuries to his chest, mouth, wrists, legs, arms, elbow, and head. Mr. Cortes is still suffering from the injuries caused by the police and continues to get medical attention.
30. Margarita Ruiz was incarcerated for approximately 18 hours. She was ROR'ed at her arraignment.
31. Margarita Ruiz attended 3 court appearances.
32. Margarita Ruiz's case was dismissed on October 1, 2014.
33. Plaintiffs filed Notice of Claim on September 25, 2014.

FIRST CAUSE OF ACTION

VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT AND FOURTEENTH AMENDMENT RIGHTS

34. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.
35. The individually named defendants who were acting in concert and within the scope of their authority at the NYPD arrested and caused plaintiffs to be imprisoned without probable cause, maliciously prosecuted, and subjected to excessive forced based as well as an unlawful search in violation of plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty and the right to privacy under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

36. Plaintiffs repeat and reallege paragraphs 1 through 35 as if fully set forth herein.
37. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.
38. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
39. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

MALICIOUS PROSECUTION

40. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.
41. The acts and conduct of the defendants constitute malicious prosecution under the Fourth Amendment to the United States Constitution.
42. Defendants commenced and continued a criminal proceeding against plaintiffs.
43. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which he was prosecuted.
44. The prosecution and criminal proceedings terminated favorably to plaintiff Eugenio Cortes on March 3, 2015 and plaintiff Margarita Ruiz on October 1, 2014.
45. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.
46. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

ASSAULT

47. The plaintiff Eugenio Cortes only repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.
48. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.
49. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

BATTERY

51. The plaintiff Eugenio Cortes only repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.
52. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.
53. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
54. The City, as the employer of Defendants is responsible for his wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

55. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.
56. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

SEVENTH CAUSE OF ACTION

FAILURE TO INTERVENE

57. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.
58. Defendants had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other members of the NYPD.
59. Defendants failed to intervene to prevent the unlawful conduct described herein.
60. As a result of the foregoing, plaintiffs were subjected to an illegal search.
61. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
62. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

NEGLIGENCE

63. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.
64. Defendants owed a duty of care to plaintiffs.
65. Defendants breached that duty of care by subjecting them to an illegal search.
66. As a direct and proximate cause of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.
67. All of the foregoing occurred without any fault by plaintiffs.
68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

69. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.
70. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiffs and violated plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
71. As a result of the foregoing, plaintiffs were deprived of liberty and sustained great emotional injuries.
72. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

TENTH CAUSE OF ACTION

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

73. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.
74. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.
75. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police officers arrest individuals without probable cause and create false versions of events to justify their actions.
76. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiffs' constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

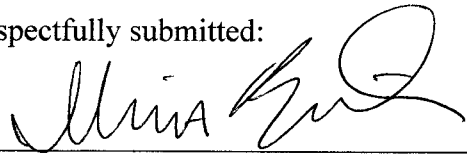
77. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs as alleged herein.
78. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiffs were unlawfully arrested and prosecuted.
79. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiffs' constitutional rights.

WHEREFORE, EUGENIO CORTES AND MARGARITA RUIZ, plaintiffs, demand a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
September 24, 2015

Respectfully submitted:

By:



ILISSA BROWNSTEIN, ESQ.
Attorney for Plaintiff
65 Broadway
Suites 813 & 814
New York, New York 10006
(212) 691-3333

TO: CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
New York, New York 10007

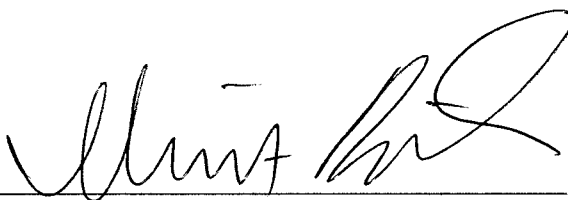
POLICE OFFICER RICHARD HERRERABAYAS (SHIELD# 31760)
13TH Precinct
New York, New York

ATTORNEY'S VERIFICATION

ILISSA BROWNSTEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **ILISSA BROWNSTEIN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs' is that Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
September 24, 2015



Ilissa Brownstein, Esq.